

ASCII MASTER FLOW – PANEL 1/9: From absent list to Part IVA and eleven citizen duties

ORIGINAL CONSTITUTION

- +-- enforceable rights in Part III
- +-- State duties in Part IV
- +-- no separate constitutional list of citizen duties

|

1976 SWARAN SINGH COMMITTEE

- +-- recommended a separate chapter and eight duties
- +-- penalties and tax duty were among proposals not fully enacted

|

42ND AMENDMENT, 1976

- +-- inserted PART IVA and ARTICLE 51A
- +-- enacted ten duties, clauses (a) to (j)

|

86TH AMENDMENT, 2002

- +-- inserted clause (k): education opportunity for child / ward, age 6-14

USSR is the conventional source influence; Indian duties remain rights-bounded.

ASCII MASTER FLOW – PANEL 2/9: The eleven duties grouped for exact recall

CONSTITUTIONAL LOYALTY AND NATION

- +-- (a) Constitution, ideals, institutions, Flag and Anthem
- +-- (b) freedom-struggle ideals
- +-- (c) sovereignty, unity and integrity
- +-- (d) defend country and render national service when called

SOCIAL AND CULTURAL CITIZENSHIP

- +-- (e) harmony and brotherhood; renounce practices derogatory to women
- +-- (f) value and preserve the rich heritage of composite culture

ECOLOGICAL AND RATIONAL CITIZENSHIP

- +-- (g) environment and compassion for living creatures
- +-- (h) scientific temper, humanism, inquiry and reform

PUBLIC ETHIC AND CAPABILITY

- +-- (i) safeguard public property; abjure violence
- +-- (j) strive for individual and collective excellence
- +-- (k) education opportunity for child / ward aged six to fourteen

ASCII MASTER FLOW – PANEL 3/9: Legal character: constitutional duty mediated by enforceable law

ARTICLE 51A APPLIES TO EVERY CITIZEN

- +-- not directly to foreigners
- +-- several clauses need legislation or institutional support

|

NON-JUSTICIABLE

- +-- no writ merely to compel abstract performance
- +-- no automatic penalty from Article 51A alone

|

LEGAL MEDIATION

- +-- legislatures enact valid laws within competence
- +-- the executive implements law and civic education
- +-- courts use duty values in interpretation where relevant
- +-- implementing laws remain subject to rights and judicial review

moral and civic norm -> education + valid law + institutions -> enforceable obligation

TRAP: no separate statute exists for every duty.

ASCII MASTER FLOW – PANEL 4/9: Rights, duties and DPSP: three constitutional directions

PART III: RIGHTS

+-- protected claims, autonomy and enforceable remedies

|

+---- CONSTITUTIONAL BALANCE ----+

|

|

PART IVA: DUTIES

PART IV: DIRECTIVES

+-- citizen responsibility

+-- State welfare purpose

+-- non-justiciable text

+-- non-justiciable programme

|

|

+----- DEMOCRATIC RECIPROCITY -----+

rights protect responsible agency

-> duties sustain civic conditions

-> DPSP directs public power toward justice

LIMIT: duty cannot erase a right; right does not immunise violence or illegality.

ASCII MASTER FLOW – PANEL 5/9: Patriotism and symbols: respect without compelled conformity

ARTICLE 19(1)(a): RESPECT CONSTITUTION, INSTITUTIONS, FLAG AND ANTHEM

|

BIJOE EMMANUEL (1986)

+-- respectful standing without singing was protected

+-- genuine conscience defeated compelled conformity

|

NAVEEN JINDAL (2004)

+-- respectful Flag display falls within Article 19(1)(a)

+-- use remains subject to valid statutory restrictions

|

SHYAM NARAYAN CHOUKSEY (2018)

+-- 2016 cinema direction was interim

+-- 9 January 2018 final order: cinema playing optional / directory

VERDICT: protect republican symbols without reducing patriotism to one performance.

ASCII MASTER FLOW – PANEL 6/9: Citizenship domains and the education triad

CLAUSE	DOMAIN	OPERATIVE DISTINCTION
51A(e)	harmony + dignity	includes renouncing practices derogatory to women
51A(f)	composite culture	plural inheritance, not one frozen culture
51A(g)	environment + animals	works with Article 48A, Article 21 and statutes
51A(h)	reason and reform	inquiry, not State-defined orthodoxy
51A(i)	property + non-violence	peaceful protest remains protected
51A(j)	excellence	aspiration, not automatic rank or admission right
51A(k)	child education	parent / guardian duty for ages six to fourteen

EDUCATION TRIAD

- Article 21A -> State-guaranteed right, ages 6-14
- Article 45 -> early-childhood care and education below six
- 51A(k) -> parent / guardian duty, ages 6-14

2023 Jallikattu ruling qualifies the stronger 2014 animal-welfare reading.

ASCII MASTER FLOW – PANEL 7/9: Verma Committee and the existing-law implementation web

1.5. VERMA COMMITTEE, 1999

- +-- preferred education, awareness and enforcement of existing laws
- +-- did not assume that every duty needs a separate penal statute
- +-- proposed sensitisation and Fundamental Duties Day, 3 January

EXISTING-LAW WEB: ILLUSTRATIVE, NOT ONE-TO-ONE

- +-- National Honour Act / Flag law -> clause (a)
- +-- UAPA, election and criminal-law fields -> sovereignty and harmony
- +-- civil-rights and atrocity laws -> dignity and fraternity
- +-- environment, wildlife and forest laws -> clause (g)
- +-- Public Property Act -> clause (i)
- +-- Right to Education Act -> clause (k)

CONTROL: valid statute defines offence and penalty; Article 51A supplies context.

ASCII MASTER FLOW – PANEL 8/9: Criticism, enforceability debate and proportionate reform

CRITICISM

vague terms
non-justiciability
Emergency-era insertion
citizens-only reach
selective moral policing
no duty to vote / pay tax

RESPONSE / REFORM

teach meaning through civic education
enforce valid laws, not abstract commands
ground duties in democratic constitutionalism
use ordinary law for institutions and foreigners
require legality, proportionality and equality
do not read rejected proposals into the text

REFORM LADDER

- 1 constitutional literacy and public education
- 2 map gaps in existing laws and implementation
- 3 prefer civil / administrative measures where adequate
- 4 legislate narrowly for demonstrable harm
- 5 preserve rights, federal competence and judicial review

VERDICT: strengthen civic capacity before creating an omnibus penal code.

ASCII MASTER FLOW – PANEL 9/9: Prelims traps, supporting PYQs and the Mains answer spine

PRELIMS CONTROL

Part IVA -> Article 51A only	citizens only; text is non-justiciable
42nd -> ten duties	86th -> eleventh duty, clause (k)
Swaran Singh -> eight recommended	tax duty and blanket penalties not enacted
51A(g) citizen environment duty	48A State environment directive
21A right / 45 below-six DPSP	51A(k) parent / guardian duty, age 6-14

VERIFIED PYQ STATUS

No directly owned routed PYQ was located.

2020 Q8 and 2025 Q55 are supporting questions; routing stays with Polity 08.

2025 Q55 official local Set-A key = C; 2020 answer remains explicitly inferred.

MAINS SPINE

- 1 define Part IVA, Article 51A and citizen-only non-justiciability
- 2 state 42nd / 86th history and group the eleven clauses
- 3 show law, education and interpretation as implementation routes
- 4 add rights limits, Verma Committee, criticism and proportionate reform
- 5 conclude: responsible citizenship within constitutional liberty.